



**Amendment to Section 3.2, Guidelines for
Availing of the Rehabilitation Privilege**

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Number : 1300065

Promulgated: 10 JAN 2013

RESOLUTION

WHEREAS, it is a declared policy of the State to uphold the people's constitutional rights to life, health, safety and property and to promote the general welfare of its people at all times;

WHEREAS, as the constitutionally-mandated central personnel agency of the government, the Civil Service Commission is authorized under Section 12 (3), Chapter 3, Title I-A, Book V of Executive Order No. 292 (Administrative Code of 1987), to promulgate policies, standards and guidelines to promote economical, efficient and effective personnel administration in the government;

WHEREAS, Section 60, Chapter 6, Title I-A, Book V of Executive Order No. 292 (Administrative Code of 1987) provides that officers and employees in the Civil Service shall be entitled to leave of absence, with or without pay, as may be provided by law and the rules and regulations of the Commission in the interest of the service;

WHEREAS, the Commission in CSC Resolution No. 060621 dated April 4, 2006, issued the guidelines for availing of the Rehabilitation Privilege and was accordingly adopted through the issuance of CSC-DBM Joint Circular No. 1, s. 2006;

WHEREAS, Section 3.2 of CSC-DBM Joint Circular No. 1, s. 2006 states that injuries from accidents that occurred while the official or employee is going to work and going home from work are not considered sustained while in the performance of official duties;

WHEREAS, the Commission, in the examination of the purpose of the privilege, has emphasized the value of leave as a social legislation and has applied the underlying context of looking at the "intent" to report to work to favor the condition relative to the grant of the privilege;

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